

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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MAYLOUBY JEAN,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
POLICE OFFICER DANIEL ZHANG,
POLICE OFFICER PEDRO LOPEZ,
POLICE OFFICER JOSEPH KAISER,
SGT. ANNEMARIE MURPHY &
JOHN AND JANE DOE POLICE OFFICERS 1-6,**

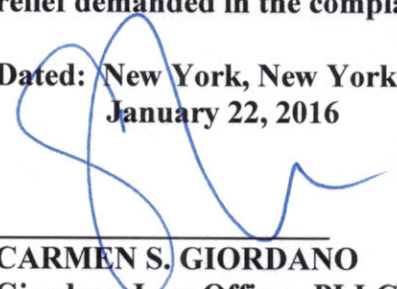
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

**Dated: New York, New York
January 22, 2016**


**CARMEN S. GIORDANO
Giordano Law Offices, PLLC
Attorneys for Plaintiff
226 Lenox Avenue
New York, New York 10027
(212) 406-9466**

Defendants' addresses and/or places of business:

[CONTINUED ON THE FOLLOWING PAGE]

Index No.:

Date Filed:

*Plaintiff designates Kings
County as the place of trial*

SUMMONS

**The basis of the venue is the
location of the occurrence**

CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER DANIEL ZHANG
Grand Larceny Unit of Detectives
New York City Police Department
One Police Plaza, Room 1100
New York, NY 10007

POLICE OFFICER PEDRO LOPEZ
New York City Police Department
67th Precinct
2820 Snyder Avenue
Brooklyn, NY 11226

POLICE OFFICER JOSEPH KAISER
New York City Police Department
67th Precinct
2820 Snyder Avenue
Brooklyn, NY 11226

POLICE OFFICER ANNEMARIE MURPHY
Grand Larceny Unit of Detectives
New York City Police Department
One Police Plaza, Room 1100
New York, NY 10007

JOHN & JANE DOE POLICE OFFICERS 1-6
Addresses unknown

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Defendants.

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COMPLAINT

Index No.

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

Plaintiff, by his attorneys, GIORDANO LAW OFFICES, PLLC, complaining of
Defendants respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for negligence, assault, battery, false arrest and malicious prosecution for an incident of police brutality and deprivation of protected rights, including those rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, that transpired on or about November 2, 2014 when police officers employed by the City of New York negligently shot and injured, used excessive force, viciously attacked, intentionally shot, wrongfully detained, arrested and falsely imprisoned Plaintiff in Kings County, New York.

2. On or about November 2, 2014 at approximately 12:00 to 3:00 a.m., at or about Avenue D and Nostrand Avenue in Brooklyn, NY, Defendant Police Officers, without justification or probable cause or justification, repeatedly shot, assaulted, detained and battered Plaintiff, subjected Plaintiff to an illegal search, and falsely arrested.

3. Defendants shot Plaintiff without justification.

4. Defendants then lied and conspired to frame Plaintiff, making false allegations against him to support false criminal charges without probable cause.

5. Defendants withheld evidence and have conspired to arrest, prosecute and frame the Plaintiff for fictitious crimes.

6. Defendants caused to be filed false criminal charges against Plaintiff in Kings County Supreme Court, criminal term, which are currently pending.

JURISDICTION AND VENUE

7. This Court has jurisdiction pursuant to the New York Civil Practice Law and Rules (“CPLR”) in that the occurrences complained of transpired in this county.

8. Venue is proper in Kings County in that the occurrences complained of transpired in Kings County, NY, and witnesses and evidence are within or nearby Kings County, NY.

9. Prior to the commencement of this action, and within ninety days after the instant claim arose, Plaintiff caused Notices of Claim in writing to be served upon Defendant The City of New York, by delivering to and leaving the same with the New York City Comptroller’s Office, in like manner as the service of a summons in the District Court, which said Notices of Claim set forth the name and post office address of the Plaintiff and his attorney, the nature of, time when, place where, and manner in which the claims arose, and the items of damage and/or injuries claimed, or that might have been sustained, so far as it was practicable. Over thirty days have elapsed since the service of such Notices of Claim and the City has failed to settle or adjust this matter.

10. This action was commenced within one year and ninety days after the cause of action herein accrued.

THE PARTIES

11. At all relevant times, Plaintiff was a resident of Kings County, New York, temporarily housed at the Bellevue Hospital Prison Ward.

12. At all times relevant hereto, Police Officer Daniel Zhang, Police Officer Pedro Lopez, Police Officer Joseph Kaiser, Sergeant Annemarie Murphy, and John and Jane Doe Police Officers 1-6 (collectively, "Defendant Police Officers") acted in their official capacities, and were employees, agents, or servants of the Defendant The City of New York, acting under color of state law.

13. Defendant The City of New York was and is a municipal corporation organized and existing under and pursuant to the laws of the State of New York. At all relevant times, Defendant The City of New York acted through its employees, agents and/or servants, including the individually named Defendants herein, who at all relevant times acted within the course and scope of their employment.

14. The limitations on liability set forth in CPLR 1601 do not apply to this action.

15. The limitations on liability set forth in CPLR 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR 1602.

AS AND FOR A FIRST CLAIM AGAINST ALL DEFENDANTS FOR NEGLIGENCE

16. Plaintiff repeats, reiterates and re-alleges the allegations contained in the preceding paragraphs as if more fully set forth herein.

17. On or about November 2, 2014, Defendant Police Officers shot Plaintiff with handguns, assaulted, battered and attacked Plaintiff.

18. Solely as a result of Defendants' negligence, gross carelessness and recklessness,

Plaintiff was caused to suffer severe and serious personal injuries to mind and body, and further, that Plaintiff was subjected to great physical pain and mental anguish.

19. The aforesaid occurrence was caused by the negligence of Defendants, without any culpable conduct on the part of Plaintiff.

20. As a result of the foregoing, Plaintiff was caused to sustain grievous bodily injury, loss of liberty, substantial physical, emotional, mental and psychological pain, and was otherwise injured.

21. As a result of the foregoing, Plaintiff demands monetary damages against Defendant Police Officers and The City of New York in an amount to be determined by a jury.

**AS AND FOR A SECOND CLAIM AGAINST
ALL DEFENDANTS FOR ASSAULT AND BATTERY**

22. Plaintiff repeats, reiterates and re-alleges the allegations contained in the preceding paragraphs as if more fully set forth herein.

23. On or about November 2, 2014 Defendant Police Officers intentionally and without justification or probable cause attacked and shot Plaintiff with their handguns, inflicting serious and life threatening physical injuries to the Plaintiff.

24. As a result of the foregoing, Plaintiff was caused to suffer loss of liberty and life, substantial emotional, mental and psychological pain, and was otherwise injured.

25. As a result of the foregoing, Plaintiff demands monetary damages against Defendant Police Officers and The City of New York and are further seeking punitive damages against the above named individual police officers in an amount to be determined by a jury.

**AS AND FOR A THIRD CLAIM AGAINST
ALL DEFENDANTS FOR FALSE ARREST**

26. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

27. Defendants without justification or probable cause physically detained and arrested the Plaintiff.

28. Defendants conspired and lied to create false information, upon which Defendants predicated their arrest of Plaintiff.

29. As a result of the foregoing, Plaintiff was caused to suffer grievous bodily harm, loss of liberty and life, substantial physical, emotional, mental and psychological pain, and was otherwise injured.

30. As a result of the foregoing, plaintiffs demand monetary damages against Defendant Police Officers and The City of New York in an amount to be determined by a jury.

**AS AND FOR A FOURTH CLAIM FOR
NEGLIGENT HIRING, TRAINING & SUPERVISION**

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs as if fully set forth herein.

32. The aforementioned occurrence took place by reason of the negligence of the City, its agents, servants and/or employees, including various police officers regarding the hiring, retention, supervision and disciplining of the Defendant police officers.

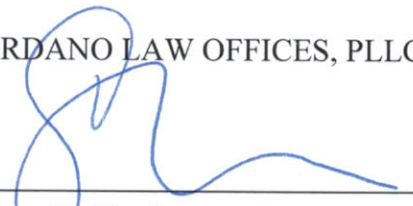
33. As a result of the foregoing, Plaintiff sustained severe and serious personal injuries and other consequential damages.

34. As a result of the foregoing, Plaintiff demands monetary damages against Defendant Police Officers and The City of New York in an amount to be determined by a jury.

WHEREFORE, Plaintiff demands judgment against Defendants on each of the aforementioned Causes of Action in an amount in excess of the jurisdictional limits of all lower courts in which this action could otherwise have been brought, together with the costs and disbursements of this action.

Dated: New York, New York
January 22, 2016

GIORDANO LAW OFFICES, PLLC

By: 

Carmen S. Giordano
Attorney for Plaintiff
226 Lenox Ave.
New York, New York 10027
212-406-9466

Index No.

Year

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SUMMONS & COMPLAINT

GIORDANO LAW OFFICES PLLC

Attorneys for Plaintiff

Office and Post Office Address

226 Lenox Avenue

New York, New York 10027

(212) 406-9466
